

		In light of the Court's ruling on the motion, the Court DENIES Plaintiff's request for monetary sanctions. The Case Management Conference is vacated. <i>Defendants to give notice.</i>
104	Citibank vs. Brown, 25-01491063	Plaintiff Citibank, N.A. ("Judgment Creditor") moves for an order assigning rights to payment of monies from the medical practice of defendant Neal J. Brown aka Neal Brown aka Dr. Neal J. Brown aka Neal J. Brown D.D.S. aka Neal Jay Brown D.D.S., individually and dba Neal J. Brown Cosmetic & General Dentistry ("Judgment Debtor") to Judgment Creditor for application toward the judgment in this action. Judgment Creditor also seeks an order restraining Judgment Debtor from encumbering, assigning, disposing, or transferring any of the rights to payment. Code of Civil Procedure section 708.510(a) provides that, except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the Court may order the judgment debtor to assign to the judgment creditor all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments. This section includes but is not limited to wages due from the federal government not subject to withholding under an earnings withholding order, rents, commissions, royalties, payments due from a patent or copyright, and insurance policy loan value. "A right to payment may be assigned pursuant to this article only to the extent necessary to satisfy the money judgment." (Code Civ. Proc., § 708.510(d).) Judgment Creditor obtained a judgment against Judgment Debtor in the amount of \$80,427.85. Judgment Creditor has not received any collections on the judgment. (Declaration of Sandra I. Tiberi ¶ 3.) Judgment Debtor is informed and believes that Judgment Debtor has rights to payment of money from Judgment Debtor's medical practice from the following insurance companies: Aetna, Inc. (and its subsidiaries); Blue Cross of California (and its subsidiaries); Blue Shield of California (and its subsidiaries); Anthem Blue Cross (and its subsidiaries); Cigna Group Insurance (and its subsidiaries); Humana (and its subsidiaries); United Healthcare (and its subsidiaries); United Health Group (and its subsidiaries); Molina Healthcare (and its subsidiaries); Health Net of California (and its subsidiaries); Health Net (and its subsidiaries); PacifiCare of California (and its subsidiaries); First Health (and its subsidiaries); Health Care Service Corp (and its subsidiaries); Elevance (and its subsidiaries); United Concordia Companies, Inc. (and its subsidiaries); Medicare; and various other insurance companies. (Id. ¶ 5.)

		In light of Judgment Creditor's judgment in the amount of \$80,427.85 and inability to date to collect on that judgment, the unopposed Motion for Assignment Order is GRANTED. The Court ORDERS that Judgement Creditor is assigned all of Judgment Debtor's rights to payment due or to become due from third party medical insurance companies from Judgment Debtor's medical practice until the Judgment Creditor's judgment, including all accrued interest, is satisfied in full. Judgment Creditor also seeks an order restraining Judgment Debtor from assigning or otherwise disposing of the assigned rights to payment. "When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned." (Code Civ. Proc., § 708.520(a).) "The court may issue an order pursuant to this section upon a showing of need for the order." (Id. § 708.520(b).) Here, Judgment Creditor's attempts to satisfy the judgment have been unsuccessful and Judgment Creditor has no other avenues in which to seek recovery. (Tiber Decl. ¶¶ 3-4, 9.) The Court finds that Judgment Creditor has shown a need for an order restraining Judgment Debtor from assigning the rights to payment. Thus, Judgment Debtor is ORDERED restrained from assigning or otherwise disposing of the rights to payment that Judgment Creditor sought to be assigned. Judgment Debtor is advised that failure to comply with this order may subject Judgment Debtor to being held in contempt of court. (Code Civ. Proc., § 708.520(d).) <i>Moving party to give notice.</i>
106	Ho vs. State Farm Mutual Automobile Insurance Company, 26-01538684	Claimants Amy Ho and Albert Avalos seek an order that all parties, their representatives, and any of their witnesses may not at any time disclose the policy limits or the amount of any offsets regarding those insurance policy limits to the Arbitrator in the upcoming underinsured motorist arbitration. "The statutory requirement for arbitration of uninsured motorist claims is contained in subdivision (f) of Insurance Code section 11580.2 which provides in pertinent part: 'The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration....' The word 'damages' in this provision means the damages which the insured is entitled to recover from the uninsured motorist, and the statute thus requires arbitration of two issues only: (1) whether the insured is entitled to